

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #15	CCRB Case #: 201907821	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 09/03/2019 3:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/18/2021	Precinct: 71
Date/Time CV Reported Wed, 09/04/2019 9:56 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/04/2019 9:56 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Michael Perez	02470	930939	WARRSEC
2. POM Eric Borbee	22871	962265	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Michael Perez	Force: Detective Michael Perez used physical force against § 87(2)(b)	A . Exonerated
B . POM Eric Borbee	Abuse: Police Officer Eric Borbee pointed his Taser at § 87(2)(b)	B . Exonerated

Case Summary

On September 4, 2019, § 87(2)(b) filed this complaint with the CCRB via telephone on behalf of her sister § 87(2)(b).

On September 3, 2019, § 87(2)(b)'s son § 87(2)(b) was treated at § 87(2)(b) in Brooklyn after he was involved in a vehicle collision. § 87(2)(b) was kept in the hospital's intensive care unit. He was unconscious throughout this time. Several of his relatives, including § 87(2)(b) and § 87(2)(b) went to the hospital to see him. Several officers, including Police Officer Eric Borbee of the 75th Precinct and Detective Michael Perez of the Warrant Section, came to the hospital and handcuffed § 87(2)(b) to his bed. § 87(2)(b) and the other relatives started arguing with the police. Detective Perez allegedly pushed § 87(2)(b) during the argument (**Allegation A: Force – Physical force, exonerated**). Police Officer Borbee then threatened to use a Taser on § 87(2)(b) (**Allegation B: Abuse of Authority – Threat of force, exonerated**). § 87(2)(b) was ultimately arrested on an open complaint of § 87(2)(b) (Board Review #01).

§ 87(2)(b) provided two clips of cell phone footage. The footage is attached in IAs #34-35 (Board Review #02-03) and summarized in IA #46 (Board Review #04). The investigation also obtained three clips of body-worn camera (BWC) footage recorded by Police Officer Borbee. The footage is attached in IAs #83-85 (Board Review #05-07) and summarized in IA #86 (Board Review #08).

Findings and Recommendations

Allegation (A) Force: Detective Michael Perez used physical force against § 87(2)(b)

§ 87(2)(b) provided a telephone statement on September 9, 2019 (Board Review #09). § 87(2)(b) provided a telephone statement on September 12, 2019 (Board Review #10). § 87(2)(b) was interviewed at the CCRB on September 17, 2019. § 87(2)(b) § 87(2)(b)'s father) provided a telephone statement on October 18, 2019 (Board Review #11). Ronnette § 87(2)(b) § 87(2)(b)'s aunt) provided a telephone statement on January 15, 2020 (Board Review #12). § 87(2)(b) § 87(2)(b)'s cousin) provided a telephone statement on February 6, 2020 (Board Review #13). The investigation was unable to obtain statements from several other relatives who were present at the hospital (Board Review #14).

It is undisputed that § 87(2)(b) was treated at § 87(2)(b) after he was involved in a hit-and-run accident. § 87(2)(b) was initially unidentified when he was brought to the hospital. Officers from the 77th Precinct who were investigating the accident eventually identified him and found that he was the subject of an open criminal complaint. While he was unconscious in a hospital bed, several relatives, including § 87(2)(b) and § 87(2)(b) gathered at the hospital. Several police officers, including Detective Perez and Police Officer Borbee, also traveled to the hospital to arrest § 87(2)(b) pursuant to the criminal complaint. When the officers attempted to handcuff § 87(2)(b) to his hospital bed, an argument ensued between the officers and § 87(2)(b) § 87(2)(b)'s relatives. The hospital room § 87(2)(b) was treated in was equipped with a set of sliding glass doors.

§ 87(2)(b) stated that when Detective Perez and the other officers arrived, they tried to walk into § 87(2)(b)'s hospital room. § 87(2)(b) was standing in the doorway at the time. Several other relatives were with her at the time. The officers stated that § 87(2)(b) was under arrest. § 87(2)(b) asked Detective Perez why § 87(2)(b) was being arrested, but he did not respond. Detective Perez then entered the door, brushing § 87(2)(b) aside. He then pushed

§ 87(2)(b) on her chest using both hands. This caused § 87(2)(b) to fall back into the sliding doors, knocking them loose. § 87(2)(b) suffered a sprain to her wrist as a result of this contact. She did not allege that officers made physical contact with any other civilians besides herself.

§ 87(2)(b)'s statement was generally consistent with § 87(2)(b)'s. She stated that § 87(2)(b) was shouting at Detective Perez in front of the hospital room. She did not recall if Detective Perez said anything to § 87(2)(b). Detective Perez pushed § 87(2)(b) backwards using both hands. § 87(2)(b) did not recall what part of her body Detective Perez touched while pushing her. In addition to falling into the sliding doors, § 87(2)(b) fell onto § 87(2)(b)'s hospital bed as well. § 87(2)(b) did not recall if § 87(2)(b) hit the bed or the doors first. § 87(2)(b) did not allege that § 87(2)(b) suffered any injuries. She denied that § 87(2)(b) or her other relatives made physical contact with any of the officers during the incident.

§ 87(2)(b) also stated that the argument took place after Detective Perez handcuffed § 87(2)(b) not before. When § 87(2)(b) and several other relatives protested the arrest, Detective Perez and several other officers pushed them out of the room. None of them were injured by this action. § 87(2)(b) stated that several of his relatives argued with the officers by § 87(2)(b)'s hospital room. He made no mention of any of the officers pushing § 87(2)(b) or any of his other relatives. § 87(2)(b) denied being present when the argument occurred. His relatives later told him that an officer had pushed § 87(2)(b) while entering § 87(2)(b)'s hospital room.

Detective Perez stated that when he tried to walk into § 87(2)(b)'s hospital room to handcuff him to the bed, several of § 87(2)(b)'s relatives tried to stop him by grabbing his shirt and his right wrist. They also shouted and cursed at him. Detective Perez pulled away from them and handcuffed § 87(2)(b). § 87(2)(b) then stepped in front of Detective Perez and bumped her chest against Detective Perez's chest. Detective Perez told § 87(2)(b) to step away. He denied pushing her or making physical contact with her. Other officers intervened to keep the relatives away from § 87(2)(b) but Detective Perez did not recall what specific actions they took. At some point during the interaction, the sliding doors were knocked loose. Detective Perez did not see how this happened. He denied pushing any civilians into the door and was not aware of any other officers doing so.

Police Officer Borbee stated that when he and the other officers tried to enter § 87(2)(b)'s room, his relatives pushed them back by pushing on their torsos with open palms. They then closed the sliding glass doors to shut the officers out of the hospital room. Police Officer Borbee and the other officers pushed the doors back open, grabbed the civilians by their arms and walked them out of the hospital room. He denied that any officers pushed the civilians. The sliding doors were later knocked out of place, but Police Officer Borbee did not recall how this happened.

Police Officer Borbee recorded the altercation with § 87(2)(b)'s relatives using his BWC (Board Review #05). At the start of the video, Police Officer Borbee is standing outside of the hospital room. Several other officers and civilians are crowded in front of it. One of the officers then opens the sliding door and steps inside. A scuffle then ensues between the officers and civilians. The camera does not clearly show what actions these parties take, though at one moment, Police Officer Borbee is seen holding § 87(2)(b)'s arm. A female lunges at Police Officer Borbee with her arm outstretched, but another civilian holds her back. Several officers then stand in front of the hospital room, forming a wall between the civilians and the room. When the video's sound begins at 0:30 into the recording, the civilians are heard shouting at the officers. The officers and a hospital employee then push the sliding doors back into position. None of the officers are seen pushing the

civilians at any time.

Neither Police Officer Borbee's other BWC videos nor § 87(2)(b)'s videos depicted this portion of the incident.

NYPD Patrol Guide procedure 221-01 states that officers may use physical force when it is reasonable to ensure the safety of a member of service or when it is reasonable to place a person in custody. Any application of force must be reasonable under the circumstances. Factors to consider when evaluating whether the use of force was reasonable include the actions taken by the subject, the immediacy of the perceived harm or threat that they pose and the presence of a hostile crowd (Board Review #15).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as exonerated.

Allegation (B) Abuse of Authority: Police Officer Eric Borbee pointed his Taser at § 87(2)(b)

It is undisputed that Police Officer Borbee pointed his Taser towards at least one of the civilians during the argument by § 87(2)(b)'s hospital room. Police Officer Borbee did not discharge the Taser.

§ 87(2)(b) stated that after Detective Perez pushed her, Police Officer Borbee drew his Taser and pointed it at her. She did not state how long he pointed the Taser or where he aimed it at. A hospital police officer then stepped between Police Officer Borbee and § 87(2)(b). Police Officer Borbee then put his Taser away. He did not point it at anybody else.

§ 87(2)(b) stated that after Detective Perez pushed § 87(2)(b), § 87(2)(b)'s other relatives became upset and attempted to intervene between the two of them. § 87(2)(b) did not specify which relatives intervened or what actions they took to intervene. Police Officer Borbee responded by drawing his Taser and pointing it at one of the relatives. § 87(2)(b) did not recall which person Police Officer Borbee pointed it at. Police Officer Borbee stood a few feet away from the relatives while pointing the Taser. § 87(2)(b) did not state how long he pointed the Taser. She did not recall if he said anything while pointing the Taser.

§ 87(2)(b) and § 87(2)(b) both stated that the officers and civilians started shouting at each other by § 87(2)(b)'s hospital room. Police Officer Borbee then drew his Taser and threatened to use it on § 87(2)(b). They did not specify how long he had the Taser drawn.

§ 87(2)(b) denied being present when officers entered § 87(2)(b)'s hospital room. He made no mention of an officer pointing a Taser at anybody.

Police Officer Borbee stated that after the officers gained entry into the hospital room, several of § 87(2)(b)'s relatives tried to gain entry by pushing the officers back. In order to prevent them from entering, Police Officer Borbee drew his Taser and pointed it at the relatives. He pointed the Taser towards the entire group rather than targeting a specific person. He activated the red target laser and told the relatives, "Get back." The relatives ceased pushing the officers once Police Officer Borbee drew his Taser. Police Officer Borbee put away the Taser as soon as the relatives ceased pushing. He did not draw it again.

Detective Perez stated that § 87(2)(b)'s relatives tried to interfere when he handcuffed § 87(2)(b) by pulling on his body. § 87(2)(b) also bumped her chest up against Detective Perez's chest. The other officers tried to prevent the relatives from interfering. Detective Perez did not recall any specific actions the other officers took. He did not recall any officers drawing or threatening to use a Taser against the civilians.

Police Officer Borbee's BWC video shows that a scuffle broke out between the officers and the civilians in front of § 87(2)(b)'s hospital room. The video does not clearly show the contact between the various parties. At 0:20 into the recording, a female civilian lunges at Police Officer Borbee, reaching out towards him with her right hand. The other civilians hold her back. An officer then stands in front of Police Officer Borbee. A red targeting dot appears on the officer's back. Police Officer Borbee's Taser is not seen on the recording (Board Review #05).

NYPD Patrol Guide procedure 221-08 states that conducted energy weapons may only be used against individuals who are actively resisting, exhibiting active aggression or to prevent individuals from injuring themselves or others. Active aggression is defined as a threat or overt act of assault, coupled with the physical means to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent. Officers are directed to issue warnings, either verbally or using the device's targeting laser, before deploying the device (Board Review #16).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is
therefore recommended that **Allegation B** be closed as **exonerated**.

Allegations Not Pleaded

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two previous CCRB complaints. This is the first complaint in which she has been identified as a victim (Board Review #17).
- § 87(2)(b) has been party to four previous CCRB complaints. This is the first complaint in which she has been identified as a victim (Board Review #17).
- Detective Perez has been a member of the service for eighteen years and has been identified as a subject officer in eight other CCRB complaints and seventeen allegations, one of which was substantiated.
 - 200702612 involved a substantiated allegation of vehicle search. The Board recommended that he receive charges. The NYPD took no disciplinary action against him.
 - § 87(2)(g)
- Police Officer Borbee has been a member of the service for four years and has been identified as a subject officer in two previous CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was ineligible for mediation.
- A Notice of Claim request was submitted to the NYC Office of the Comptroller on December 22, 2020. The results will be included in the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 15

Investigator: Owen Godshall Inv. Owen Godshall 12/29/2020
Signature Print Title & Name Date

Squad Leader: Simon Wang IM Simon Wang 01/20/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date